

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

RANDALL SCOTT SHOUP,

Petitioner

VS.

KATHERINE BUXTON REILLY,

Respondent

) Case Number: FDI-22-797054

) Hearing Date: September 1, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER RE: ISSUE CLARIFY RETRAINING AND SEEK WORK ORDERS

TENTATIVE RULING

The parties are ordered to appear. The parties may appear in person in Dept. 403 or remotely by Zoom video. If a party chooses to appear by video, that party must abide by the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth above.

A. Procedural History

- 1) The parties are Petitioner Randall Scott Shoup and Respondent Katherine Buxton Reilly. They share one child: Sebastian Reilly Shoup (DOB: 10/03/06).
- 2) On October 4, 2022, Petitioner filed a Petition for Dissolution indicting the date of marriage is October 4, 1998 and date of separation is July 13, 2014 for a marriage of 15 years and 9 months.
- 3) On December 28, 2022, Respondent filed a Response and Request for Dissolution indicting the date of marriage is October 4, 1998 and date of separation is November 4, 2022 for a marriage of 24 years and 1 month.
- 4) On June 25, 2024, the parties filed a Stipulation and Order agreeing date of separation is June 30, 2017.
- 5) On November 27, 2024, the parties filed a Stipulation and Order regarding temporary monthly child support, temporary monthly spousal support, attorney's fees, and a vocational evaluation.

1 6) On March 21, 2025, the parties filed a Stipulation and Order partly agreeing to adopt the findings
2 of Vocational Evaluator, Rachel Hawk, whose report is attached as Exhibit A.

3 7) On January 26, 2026, Petitioner filed a Request for Order seeking “Issue/Clarify Retraining &
4 Seek Work Orders.” Petitioner requests the Court issue the following orders:

5 a. That Respondent, Katherine Buxton Reilly shall forthwith comply with the
6 recommendations of the vocational evaluation, including:

7 i. Katherine shall complete a minimum of 15 hours per week of vocational or legal
8 education (e.g., MCLE courses, computer training, or coursework in
9 environmental law).

10 ii. Katherine shall engage in networking activities to expand her professional
11 contacts and awareness of job opportunities in environmental law. These
12 activities shall include: (A) attending at least one professional or legal
13 association meeting, webinar, or networking event per month (such as those
14 offered by the Bar Association of San Francisco or the California Lawyers
15 Association); and (B) communicating monthly (in person, by phone, by email,
16 by LinkedIn, etc.) with at least five professional contacts in the environmental
17 law, real property, and/or land use law (such as attorneys, recruiters, or legal
18 organizations).

19 a. Katherine shall submit a minimum of five job applications per month for paid or unpaid
20 legal positions. This can include legal volunteer opportunities.

21 b. Katherine shall provide a seek work report every 30 days.

22 c. A review hearing shall be set for approximately 90 days after the order on this hearing to
23 assess Katherine’s compliance with these requirements.

24 8) At the prior April 21, 2026 hearing, the Court ordered Respondent to continue to follow the
25 recommendations provided in Rachel Hawk’s vocational evaluation, as follows:

26 a. Respondent, Katherine Buxton Reilly shall forthwith comply with the recommendations
27 of the vocational evaluation, including:

28 i. Katherine shall maintain her mandatory continuing legal education requirements
29 as required by the State Bar of California.

1 ii. Katherine shall engage in networking activities to expand her professional
2 contacts and awareness of job opportunities in environmental law. These
3 activities shall include: (A) attending at least one professional or legal
4 association meeting, webinar, or networking event per month (such as those
5 offered by the Bar Association of San Francisco or the California Lawyers
6 Association); and (B) communicating monthly (in person, by phone, by email,
7 by LinkedIn, etc.) with at least five professional contacts in the environmental
8 law, real property, and/or land use law (such as attorneys, recruiters, or legal
9 organizations).

10 b. Katherine shall submit a minimum of five job applications per month for paid or unpaid
11 legal positions. This can include legal volunteer opportunities.

12 c. Katherine shall provide a seek work report every 30 days.

13 d. A review hearing is set on September 1, 2026, at 9:00 a.m., in Dept. 403 to assess
14 Katherine's compliance with these requirements. At that time, if Respondent has not
15 located full time employment, the Court may consider any request by Petitioner for
16 imputation of earning capacity to Respondent.

17 e. The parties shall file update declaration at least 10 days in advance of the review hearing.

18 9) On May 26, 2026, Respondent filed an Income and Expense Declaration.

19 10) On July 29, 2026, Petitioner filed an Income and Expense Declaration.

20 11) On August 21, 2026, Respondent filed a supplemental declaration asserting that she has made
21 diligent seek work efforts but has not yet secured employment. Respondent requests the Court
22 maintain the current temporary support orders.

23 12) On August 21, 2026, Petitioner filed an update declaration requesting the Court impute
24 Respondent with an income of \$125,000 per year, which is consistent with the entry-level
25 compensation range identified in the vocational evaluation.

26 13) On August 21, 2026, counsel for Petitioner filed a declaration asking the Court to amend the
27 April 21, 2026 Findings and Order After Hearing (filed August 7, 2026) to reflect the Court's
28 order regarding the number of job applications Respondent is ordered to complete (the order
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1 currently states 10 when Respondent was ordered complete 5 job applications per week).

2 Attached is a proposed amended order.

3 **B. Findings and Order**

- 4 1) The Court will review and sign counsel for Petitioner's proposed, amended April 21, 2026
5 Findings and Order After Hearing to reflect the Court's order that Respondent shall submit 5 job
6 applications per week.
- 7 2) The Court is inclined to grant Petitioner's request for imputation of earning capacity to
8 Respondent given that the vocational evaluation states it could take Respondent 12-18 months to
9 fully prepare to return to the field of land use law (i.e., 3-6 months to obtain a full-time paid
10 position after 12 months of continued education and training). The vocational evaluation is dated
11 February 7, 2025; therefore, 18 months has lapsed.
- 12 3) **The parties are ordered to appear** and shall be prepared to present argument regarding the
13 amount Respondent should imputed and updated Statement of Support Calculations to the Court.
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